

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Susan Scurich et al v. Northgate Cottages at Silverado, Inc. et al

24CV000076

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to September 3, 2026, at 8:30 a.m. in Dept. B.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

“[California Rules of Court, rule] 3.1362 contains a number of technical requirements for a motion to be relieved as counsel that are frequently overlooked, resulting in these motions having to be continued for compliance.” (Weil & Brown, Cal. Practice Guide Civ. Pro. Before Trial (Rutter 2026) § 9:385.1, p. 9(I)-185 (Civ. Pro Before Trial).) Among these, the Notice of Motion and Declaration of Counsel *must* be submitted on Judicial Council forms. (See Cal. Rules of Ct., rule 3.1362(a), and (c).)

On August 24, 2026, counsel for Plaintiffs appeared *ex parte* and applied for an order to be relieved as counsel. Judicial Council form Notice of Motion and Declarations are attached *as exhibits* to the Declaration of A. Jeanne Grove filed in support of the Application (Grove Decl.). However, counsel failed to file them. Because a Motion to be Relieved as Counsel is *required* to be made by use of these forms, the *ex parte* Application cannot be read as constituting the Motion, here.⁵ As such, the Court is without authority to grant the relief requested. (See Cal. Rules of Ct., rule 3.1362; see also Civ. Pro. Before Trial at § 9.385.11 [“Judges should never grant the motion if it is not on the Judicial Council forms”].)

Moreover, at the August 24, 2026, hearing, the parties indicated a willingness to continue the trial currently set for September 3, 2026. However, there remains no Motion to Continue, or Stipulation and Order for such continuance in the Court's file.

⁵ Moreover, the versions of the Notice of Motion and Declaration attached to the Grove Decl. are not signed.